

Tentative Rulings and Resolution Review Hearings
May 18, 2026
Department 64

This Court does not follow the procedures described in Rules of Court, Rule 3.1308(a). Tentative rulings are available online no less than 12 hours in advance of the time set for hearing. Tentative rulings may be found on the court's website (www.shasta.courts.ca.gov) and are available by clicking on the "Tentative Rulings" link under the "Online Services" tab. A QR code that links to the tentative rulings is posted outside the courtroom. A party is not required to give notice to the Court or other parties of intent to appear to present argument.

Telephonic appearances through CourtCall (888-882-6878; courtcall.com) are generally permitted on the Law & Motion and Resolution Review calendars and can be made without leave of Court.

8:30 a.m. Law and Motion

BOWEN VS. ASK PETE'S CORP

CASE NUMBER: 25CV-0208122

Tentative Ruling on Motion for Protective Order: Defendant Ask Pete's Corp. dba Pete's Restaurant & Brewhouse ("Ask Pete's") moves for a Protective Order pursuant to CCP 2030.090, 2031.060, 2019.030, 2017.020, and 2025.420 regarding Plaintiff William Bowen's requests for production, set one, nos. 3-13, 15-45, 47-61, and 63-65; special interrogatories, set one, nos. 1-8, 12, and 13; form interrogatories, general, set one, nos. 4.1-4.3, 12.2, 12.3 and 12.6; and his Person Most Qualified Deposition Notice topic nos. 2-5, 7, and 11-33. The Motion is made on the grounds that Plaintiff seeks irrelevant discovery that is not reasonably calculated to lead to the discovery of admissible evidence, and that the discovery is overbroad, burdensome and invasive of privacy interests. Ask Pete's also seeks sanctions in the amount of \$9,002.50. Plaintiff opposes the Motion.

Meet and Confer: Meet and confer efforts were required prior to filing the motion. CCP 2031.060. The Declaration of Galen Gentry provides adequate evidence of meet and confer efforts. However, given the Court's granting of Plaintiff's Motion to Continue Trial on May 11, 2026, additional meet and confer efforts could likely have obviated the need for Court intervention on these issues.

Merits: A party may seek a protective order to limit or avoid responding to discovery requests, by demonstrating good cause. The court may issue such an order to protect a party or other affected person from "unwarranted annoyance, embarrassment, oppression, or undue burden and expense." CCP §§ 2031.060, 2030.090. The burden of showing good cause rests on the party seeking the protective order, who must provide specific facts justifying the relief sought, rather than relying on broad or conclusory statements. *Nativi v. Deutsche Bank National Trust Co.*, 223 Cal. App. 4th 261 (2014), *Fairmont Ins. Co. v. Superior Court*, 22 Cal. 4th 245 (2000). The court has broad discretion to issue protective orders, which may include directions that certain discovery need not be responded to, or that responses be made under specified terms and conditions. CCP §§ 2031.060, 2030.090, *Mercury Interactive Corp. v. Klein*, 158 Cal. App. 4th 60 (2007). Additionally, the court must balance the burden, expense, or intrusiveness of the discovery against its likely benefit, considering factors such as the needs of the case, the amount in controversy, and

the importance of the issues at stake. *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants*, 148 Cal. App. 4th 390 (2007). The court may impose just terms and conditions for the discovery and may also impose monetary sanctions unless the opposing party acted with substantial justification or other circumstances make sanctions unjust. CCP §§ 2031.060, 2030.090, 2017.020.

Defendant's main argument here is that Plaintiff's belatedly served discovery is irrelevant, because it largely concerns overbroad and disproportionate class discovery. Defendant argues that Plaintiff is unable to certify a class due to the impending trial date, and that he may only meaningfully pursue individual claims at this point. While this may have been true at the time this Motion was filed, it is no longer the case. The Court granted Plaintiff's Motion to Continue Trial on May 11, 2026 and extended discovery deadlines to coincide with a trial date to be set at a future review hearing.

Ask Pete's particularly calls out Request for Production Nos. 42, 50, and 65 as overly broad. Number 65 seeks all documents evidencing any activity by covered employees on your point of sales system during the covered period. The Court agrees that this RFP appears to be overbroad as it would potentially encompass all sales transactions for the restaurant. The same is true for RFP 42, which is unclear and overbroad. RFP 50 is not overbroad as it seeks documents evidencing *termination dates* of employees during the covered periods – not the speculative information Defendant suggests regarding personnel files. The Court declines to impose a protective order as to these RFPs at this time. The parties are directed to meet and confer regarding narrowing the scope of Numbers 42 and 65. Defendant may seek additional relief on this point if the parties cannot resolve the matter through good faith meet and confer efforts.

Sanctions: The Court shall impose sanctions against any party who unsuccessfully makes a motion for a protective order unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust. CCP § 2031.060(h). Here, the Court finds imposing sanctions on this Motion would be unjust. At the time the Motion was filed, Defendant was justified in arguing that the impending trial date made the class discovery overly broad. However, before this Motion is set for hearing, the Court continued the trial date and extended discovery deadlines. Therefore, at this time, class discovery is warranted and there is no good cause for a protective order.

The Motion is **DENIED**. Sanctions will not be imposed. Moving party did not submit a proposed order as required by Local Rule 5.17(D). Defendant is to prepare the order.

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CASE NUMBER: 25CV-0208122

Tentative Ruling on Motions to Compel Further Responses to Discovery: Plaintiff William Bowen moves to compel further responses to Demands for Production, Set One and to Special Interrogatories, Set One. Defendant Aske Pete's Corp dba Pete's Brewhouse & Restaurant opposes the Motions.

On receipt of a response to a demand for inspection or to interrogatories, a propounding party may move for an order compelling further responses if the responses are inadequate. CCP §§ 2031.310(a), 2030.300(a). A motion to compel further responses for production must show "good cause" for the request. CCP § 2031.310(b)(1). The motion must be accompanied by a meet and